

Tentative Rulings
January 13, 2025
Department 42

Tentative Rulings for Guardianship cases can be found in the link titled, “Department Guardianships - Tentative Rulings.”

This Court does not follow the procedures described in Rules of Court, Rule 3.1308(a). Tentative rulings are available online no less than 12 hours in advance of the time set for hearing. Tentative rulings may be found on the court’s website (www.shasta.courts.ca.gov) and are available by clicking on the “Tentative Rulings” link under the “Online Services” tab. A QR code that links to the tentative rulings is posted outside the courtroom. A party is not required to give notice to the Court or other parties of intent to appear to present argument.

Per Local Rule 5.13, telephonic appearances through CourtCall (888-882-6878; courtcall.com) are generally permitted on the Law & Motion and Resolution Review calendars and can be made without leave of Court.

1:30 p.m. – Case Management Conference

SIERRA PACIFIC WAGE AND HOUR CASES

Case Number: 5235

Tentative Ruling on Case Management Conference: This coordinated proceeding is on calendar for a Case Management Conference. The Court has reviewed the Case Management Conference Statement filed by Plaintiff John Smith. Plaintiff McDonald and Defendant Sierra Pacific Industries did not file Case Management Statements.

STAY. The *McDonald* matter remains stayed pending appeal. Briefing in the appeal has not been completed and Appellant’s reply brief is due March 14, 2025. The *Smith* matter is stayed by stipulation of the parties.

MOTIONS. Pending in *McDonald* are SPI’s Motion for Extension of Time to Comply with Court Order Due to Impossibility that was filed on August 31, 2023 and SPI’s Motion for Protective Order Regarding Preservation and Production of Video Camera Footage that was filed on September 1, 2023. Both motions are stayed. There are currently no motions pending in the *Smith* matter.

TRIAL DATES. Both matters remain stayed. When the stay is lifted, the Court intends to set the *McDonald* matter for trial and the *Smith* matter for hearing on the Motion for Class Certification.

FURTHER CASE MANAGEMENT CONFERENCE DATE. The Court intends to set a further Case Management Conference and will discuss available dates with counsel.